

“Substitutions”). Both Helio Dimas and Susana Dimas are now representing themselves in pro per.

Analysis

The Motions to be Relieved as Counsel are unopposed.

Disposition

The Court finds and rules as follows:

1. The Motions to be Relieved as Counsel are DROPPED from calendar as moot in light of the Substitutions.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C24-03337
CASE NAME: MARICRUZ DIMAS-MARTINEZ VS. HELIO DIMAS
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSEPH A. LEPERA**
FILED BY: DIMAS, SUSANA
TENTATIVE RULING:

See LINE 3 above.

5. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
***HEARING ON MOTION IN RE: STRIKE THE WHOLE OF SIMONA YANA S. ZAKHEIM AND HYDEN ZAKHEIM, LLP'S DEFECTIVE DEMURRER TO FIRST AMENDED COMPLAINT**
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Withdrawn by the moving party's Notice of Withdrawal filed April 13, 2026. Accordingly, the motion is DROPPED from calendar.

6. 9:00 AM CASE NUMBER: C25-01728
CASE NAME: JOHN DOE VS. JOSEPH MARTIN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Mount Diablo Unified School District (“Defendant”) brings this demurrer to the complaint (“Complaint”) of plaintiff John JB Doe (“Plaintiff”). Defendant challenges Plaintiff’s second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for negligent failure to warn, train, or educate students.

For the reasons discussed below, Defendant’s demurrer is **SUSTAINED** as to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and third cause of action for